

Smt. Vishwarupa Jain vs Dharmendra Jain on 13 February, 2023

Author: Dwarka Dhish Bansal

Bench: Dwarka Dhish Bansal

1

IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR
BEFORE
HON'BLE SHRI JUSTICE DWARKA DHISH BANSAL
CIVIL REVISION No. 69 of 2023
13th DAY OF FEBRUARY, 2023

Between:-

SMT. VISHWARUPA JAIN W/O DHARMENDRA JAIN,
AGED ABOUT 37 YEARS, OCCUPATION: HOUSEWIFE
R/O BIHARIJI WARD, KHURAI, TAHSIL KHURAI,
DISTRICT SAGAR AT PRESENT ARIHANT MOBILE
SHOP, BESIDE HANUMAN MANDIR, JAIL ROAD,
JHANDA CHOUK GOPALGANJ DISTRICT SAGAR
(MADHYA PRADESH)

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(BY MR. PRIYANK CHOUBEY-ADVOCATE)

AND

DHARMENDRA JAIN S/O BABULAL JAIN, AGED ABOUT
41 YEARS, OCCUPATION: BUSINESS R/O BIHARIJI
WARD KHURAI, TAHSIL KHURAI, DISTRICT SAGAR
(MADHYA PRADESH)
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HUSSAIN
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This civil revision has been preferred by applicant/wife challenging the order dated 10.01.2023 passed by 4th District Judge, Sagar dismissing the applicant/wife's application under Order 7 Rule 11 read with Order 2 Rule 2 of CPC.

2. Learned counsel for the applicant submits that the respondent had filed a petition on 11.12.2015 under Section 10 of the Hindu Marriage Act, 1955, in which the decree of judicial separation was passed on 05.04.2019 by 2nd Additional District Judge, Khurai, District Sagar in RCS HM No.100060-A/2015, against which the respondent himself has preferred First Appeal No.1003/2019 before the High Court, which is pending. He further submits that during pendency of the first appeal before the High Court, respondent has filed a suit/petition on 24.09.2020 for divorce under section 13(1A) of the Hindu Marriage Act even without mentioning any cause of action, which cannot be said to have arisen prior to lapse of 7 years and as such the petition for divorce is not maintainable and deserves to be dismissed/rejected.

3. Heard learned counsel for the applicant and perused the record.

4. The provisions contained in Section 10 and Section 13(1A) of the Hindu Marriage Act, 1955 are quoted as under:-

"Section 10 Judicial separation-(1) Either party to a marriage, whether solemnized before or after the commencement of this Act, may present a petition praying for a decree for judicial separation on any of the grounds specified in sub-section (1) of section 13, and in the case of a wife also on any of the grounds specified in sub-section (2) thereof, as grounds on which a petition for divorce might have been presented.] (2) Where a decree for judicial separation has been passed, it shall no longer be obligatory for the petitioner to cohabit with the respondent, but the court may, on the application by petition of either party and on being satisfied of the truth of the statements made in such petition, rescind the decree if it considers it just and reasonable to do so."

"Section 13(1A) Either party to a marriage, whether solemnised before or after the commencement of this Act, may also present a petition for the dissolution of the marriage by a decree of divorce on the ground:

(i) that there has been no resumption of cohabitation as between the parties to the marriage for a period of [one year] or upwards after the passing of a decree for judicial separation in a proceeding to which they were parties; or

(ii) that there has been no restitution of conjugal rights as between the parties to the marriage for a period of [one year] or upwards after the passing of a decree for restitution of conjugal rights in a proceeding to which they were parties."

5. Apparently, the present petition for divorce has been filed on the ground that even after passing of decree of judicial separation on 05.04.2019, there has been no resumption of cohabitation between the applicant and the respondent for a period of one year or upwards.

6. As such, in my considered opinion at the present stage of suit/petition for divorce, merits and demerits of allegations of cohabitation cannot be seen and further, direction of separate living for seven years contained in judgment and decree dated 05.04.2019 being contrary to the provision aforementioned, does not come in the way of filing of suit/petition for divorce under Section 13(1A) of the Hindu Marriage Act. Hence, learned Court below has not committed any illegality in dismissing the application under Order 7 Rule 11 read with Order 2 Rule 2 of CPC.

7. Resultantly, this civil revision fails and is hereby dismissed.

8. Interim application(s), if any, shall stand dismissed.

(DWARKA DHISH BANSAL) JUDGE sh